

COUNTY OF VANCE

Absent: Commissioner Carolyn Faines.

Pastor Carolyn Roy, Plank Chapel United Methodist Church, gave the invocation.

Commissioner Thomas S. Hester, Jr. nominated Commissioner Dan Brummitt for the position of vice-chairman. Commissioner Archie B. Taylor, Jr. seconded the nomination. Vote to close the nominations and appoint Commissioner Dan Brummitt as vice-chairman for the coming year was unanimous.

The next item addressed was the 2020 holiday schedule. Motion was made by Commissioner Leo Kelly, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to adopt the following schedule of holidays for 2020:

2020 Holiday Schedule

New Year's Day	January 1, 2020	Wednesday
Martin Luther King's Day	January 20, 2020	Monday
Good Friday	April 10, 2020	Friday
Memorial Day	May 25, 2020	Monday
Independence Day	July 3, 2020	Friday
Labor Day	September 7, 2020	Monday
Veteran's Day	November 11, 2020	Wednesday
Thanksgiving	November 26 & 27, 2020	Thursday & Friday
Christmas	December 24, 25 & 28, 2020	Thursday, Friday Monday

Motion was made by Commissioner Thomas S. Hester, Jr. that the Board of Commissioners renew its meeting schedule for the first Monday of each month at 6:00 p.m. unless otherwise noted. This motion was seconded by Commissioner Archie B. Taylor, Jr. and unanimously approved.

Lisa Harrison, Public Health Director, appeared before the board and presented the annual health department report and community health assessment priorities. The annual report included information on primary care, environmental health, financial reporting, Medicaid transformation, WIC, communicable diseases, and the new Carolina Fellows Family Dentistry dental clinic. The dental clinic accepts Medicaid, NC Health Choice and private insurance. A sliding fee scale is available for individuals without dental insurance who meet the eligibility criteria. Ms. Harrison also reported on mandated services, state funding and how local dollars are spent. The board thanked Ms. Harrison for her report and for all she does for the community.

As advertised, a public hearing was held to gain citizen input on a rezoning request for two parcels located on Big Ruin Creek Road (Parcels 0404 03013 and 0404 03014). Mr. Jose Luis Ponce Zuniga and Amaria Gisela Ponce are the property owners and Oakwood Homes is the applicant. County Planner Angie Blount stated that the request is to amend the zoning map and to rezone the parcels from GC1 (General Commercial) to R30 (Residential Low Density). Ms. Blount stated that the Planning Board recommended approval of the rezoning at its November 14 meeting. As there was no one who wished to speak on this matter, Chairman Gordon Wilder declared the public hearing closed.

After brief discussion, motion was made by Commissioner Dan Brummitt to approve the rezoning request on the basis that it is consistent with the character and land uses of the surrounding area and will promote residential development. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Water District Board

Chairman Gordon Wilder called the water district board to order.

Committee Report - Purchase of Meters. County Manager Jordan McMillen stated that the committee (Wilder[C], Brummitt, & Taylor) met on Monday, December 2, 2019 with Envirolink and was informed of the need to purchase additional water meters for the Water District's system in Kittrell. The Kittrell system utilizes a different meter type and electronic reading system from the remainder of the water district's system. Staff will be proceeding with the purchase of 24

meters at an estimated cost of \$8,000 from the water system budget, but it is anticipated that a budget amendment may be necessary later as this was not an expense included within the original budget this fiscal year.

The October 2019 monthly operations report was presented to the board for information. Chairman Wilder adjourned the water district board.

Committee Reports and Recommendations

Properties Committee - Carpet Replacement (Courthouse & Administration Building). Commissioner Dan Brummitt reported that the committee (Brummitt[C], Taylor, & Wilder) met on Monday, December 2, 2019 to review quotes for replacement of carpet within two courtrooms at the courthouse as well as the hallways at the administration building. The project is included within the capital improvement program (CIP) and is funded within the current year budget. The committee recommended proceeding with the low bidder (A.B. Hair Carpets) for both projects.

Motion was made by Commissioner Dan Brummitt to award the contract to A.B. Hair Carpets totaling \$30,538 for replacement of carpet in two courtrooms at the courthouse; and to award the contract to A.B. Hair Carpets totaling \$29,652 for replacement of carpet at the administration building. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Properties Committee - Courthouse HVAC Unit Replacements. Commissioner Brummitt stated that the committee reviewed bids for replacement of five HVAC units at the courthouse. The project is included within the capital improvement program (CIP) and is funded within the current year budget. The committee recommended proceeding with the low bidder (Gupton Services) for this 60 day project.

Motion was made by Commissioner Dan Brummitt, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to award the contract to Gupton Services totaling \$56,935 for replacement of five HVAC units at the courthouse.

Properties Committee - EDC Office Relocation Lease Agreement. Commissioner Brummitt stated that the committee reviewed a proposed lease agreement for moving the Economic Development Commission (EDC) department to space adjacent to the Sadie's Coffee shop on Garnett Street. The committee made note the existing space (500 square feet) on Graham Avenue is too small and is not visible, does not include space for a board room, and is leased at a higher per square footage rate. The new space includes 1,126 square feet at \$10 per square foot

per year, will afford the opportunity for a board room/meeting space and is in a good location relative to downtown, the chamber of commerce, the downtown development commission and county offices. The lease is to begin January 1, 2020 or such time that the premises are ready for occupancy and accepted by the county and will run through June 30, 2023. The lease includes the cost of water and sewer utility service and staff anticipates potential minor costs for new furniture and moving expenses. The committee discussed the need for highly visible signage for the office and made note that the Economic Development Commission unanimously recommended moving to this location. The committee recommended moving forward with the lease.

Motion was made by Commissioner Dan Brummitt to approve the lease agreement with Garnett Street Apartments, LLC for relocation of the Economic Development Office to the Sadie's Coffee Building in downtown Henderson subject to final attorney review. This motion was seconded by Commissioner Thomas S. Hester, Jr.

Commissioners Yolanda Feimster and Leo Kelly, Jr. expressed their displeasure with this location and feel that other locations downtown should have been considered.

After further discussion, vote on the motion to approve the lease agreement with Garnett Street Apartments, LLC for relocation of the Economic Development Office to the Sadie's Coffee Building in downtown Henderson subject to final attorney review was ayes – four (4); noes – two (2), with the dissenting votes being cast by Commissioners Yolanda Feimster and Leo Kelly, Jr.

Properties Committee - District Attorney Office Renovation. Commissioner Brummitt stated that the county manager presented a plan to renovate the courthouse to include additional space for growing staff at the District Attorney's (DA's) office. The plan would include renovating and converting the existing law library adjacent to the DA's office to create additional office space and a new public access point for the office. An existing space on the third floor of the courthouse adjacent to the courtroom could then be converted into the new law library. The Clerk of Court and the District Attorney are in agreement on the project. Staff anticipates a potential project cost of \$100,000 and intends to include this within the County's Capital Improvement Project prioritization for next fiscal year.

Properties Committee - Eaton Johnson Gym. Commissioner Brummitt stated that the committee was informed that the Henderson Parks and Recreation Department has inquired about using the gym at Eaton Johnson for the winter basketball season. The recreation department has an existing shared use agreement with the school system and has used the space in previous years

at no cost. The manager informed the committee the recreation department would be using the space under the existing shared use agreement for this winter season while the county and school system finalize a deed for transferring the property to the county. In the meantime, a draft agreement will be developed with the city to allow the recreation department to utilize and manage use of the space in the future as the county has done for other county owned gym facilities (i.e. Old Aycock Gym). The committee was agreeable to the idea and suggested including provisions in the agreement for maintenance of the space as well as allowing the county priority use of the space when needed.

Properties Committee - Former Henderson Laundry. Commissioner Brummitt noted that the committee was informed that the city has an interest in working with the county to clean up and remove the former Henderson Laundry facility at the corner of Chestnut and Andrews Avenue. The property has been in arrears on taxes since 2011 and the city will be working to determine potential cleanup options and costs utilizing the state's Dry Cleaning Solvent Cleanup Program. The program would cover the majority of cleanup costs outside and around the building limiting the financial impact for the city and county. The program does not cover demolition costs or cleanup costs for fluids within existing equipment or stored within the building. City staff will be determining final costs for cleanup and potential demolition and reporting back to the county. Depending upon timing of the city's research, this could be a potential budget item for next fiscal year.

County Attorney's Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during its November meeting, the board of commissioners approved the public sale process for 107 Briarcliff Street – Parcel 0214C02025 and for a lot on Ranex Drive – Parcel 0055 01035. The properties were advertised through the upset bid process and no upset bids were received. The board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Dan Brummitt, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the following resolutions accepting the bids for 107 Briarcliff Street – Parcel 0214C02025 and for a lot on Ranes Drive – Parcel 0055 01035:

[illegible]

RESOLUTION ACCEPTING BID FOR COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

107 Briarcliff Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0214C02025.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **November 7, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Aure Jowan Tejada** in the amount of **\$3,975.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 9th day December, 2019.

Gordon Wilder (signed)
Gordon Wilder, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

Ranes Drive Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0055 01035.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **November 7, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Marvin Gilmore** in the amount of **\$750.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 9th day December, 2019.

Gordon Wilder (signed)
Gordon Wilder, Chairman
Vance County Board of Commissioners

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

County Manager's Report

Motion was made by Commissioner Dan Brummitt to declare canine Richie as surplus property and sell him to his handler Officer Bobby Martin for the sum of \$3,000. This motion was seconded by Commissioner Thomas S. Hester, Jr.

Resolution – Removal of Register of Deeds Records for Preservation. Mr. McMillen noted that the board approved a contract last month for preservation of vital records in the register of deeds office. NC law requires approval from the board for removing the records for greater than 24 hours. The records will be taken to the office of Kofile in Greensboro for approximately 18-22 weeks to complete the preservation process.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to approve the following resolution authorizing documents to be removed offsite from the register of deeds office for purpose of preservation:

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RESOLUTION
by the
Vance County Board of Commissioners
To Authorize Documents to be Removed Off-site from Register of Deeds Office
for Purpose of Preservation

WHEREAS, the Register of Deeds is an elected official with primary duties deemed to be a major custodian of records in county government, including maintenance and protection of such records; and

WHEREAS, Vance County Register of Deeds Cassandra D. Neal has determined the need for preservation of Original Marriage Licenses which are currently stored in the Vance County Register of Deeds Office dated from (1895-1920), whereas the years, number of records, and volume of pages including any documentary attachments as follows : (1895 (2), 1911 (1), 1912 (37), 1913 (250) Vol. 1 Pg.1-250, 1914 (266) Vol. 1 Pg. 251-516a, 1915 (263) Vol. 2 Pg. 1-263, 1916 (241) Vol. 3 Pg. 1-241, 1917 (344), Vol. 4 Pg. 1-334, 1918 (295) Vol. 5 Pg. 1-292; 1919 (1) Vol. 6 Pg. 1 and 1920 (13) Vol. 7 Pg. 1-13); and

WHEREAS, such preservation requires said records to be taken to the office of Kofile, in Greensboro, N.C., 18-22 weeks or until marriage preservation is completed; and

WHEREAS, North Carolina General Statutes 153A-436(b) only allows a register of deeds to approve removal of public records for a maximum of twenty-four hours, with a longer absence to be approved only by the board of county commissioners.

NOW THEREFORE BE IT RESOLVED, that the Vance County Board of Commissioners does approve the request of duly elected Vance County Register of Deeds Cassandra D. Neal for the removal from the Vance County Register of Deeds Office of Original Marriage Licenses dated from (1895-1920), whereas the years, number of records, and volume of pages including any documentary attachments as follows : (1895 (2), 1911 (1), 1912 (37), 1913 (250) Vol. 1 Pg.1-250, 1914 (266) Vol. 1 Pg. 251-516a, 1915 (263) Vol. 2 Pg. 1-263, 1916 (241) Vol. 3 Pg. 1-241, 1917 (344), Vol. 4 Pg. 1-334, 1918 (295) Vol. 5 Pg. 1-292; 1919 (1) Vol. 6 Pg. 1 and 1920 (13) Vol. 7 Pg. 1-13); and to be transported by Kofile staff to and from its Greensboro office for the purpose of preservation of said documents.

This, the 9th day of December, 2019.

Gordon Wilder (signed)
Gordon Wilder, Chairman
Vance County Board of Commissioners

Joint Venture Agreement with City of Henderson. Mr. McMillen stated that the County is receiving bids for installation of water and sewer lines and a roadway as a part of expanding the Henderson Vance Industrial Park. In order to proceed with the project, it is essential for the City to take ownership, operation, and maintenance responsibilities for the newly installed water and sewer lines as well as a proposed sewer pump station. Due to the station's close proximity to another pump station within the park, flow will be minimal and maintenance costs will be significant until new industry is recruited and added to the system. The joint agreement includes the city taking ownership of the lines and agreeing to operate and assume maintenance responsibilities for the lines and pump station as required by the state. To assist with a portion of

initial maintenance costs, the county will provide \$22,500 to the City when the new construction is ready and able to be put in service. The \$22,500 will then be reimbursed to the county from future revenue generated on the sewer system. The City Council has already taken action to approve the agreement and county approval will allow the project to proceed subject to bids being within budget. The bid opening for the project has been moved to December 17.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Archie B. Taylor, Jr., vote unanimous, to approve the joint venture agreement with the City of Henderson relative to a new pump station being installed for the Henderson-Vance Industrial Park expansion.

Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to approve the following consent agenda items as presented: Budget Transfer #4, October 2019 Tax Refunds and Releases, departmental monthly reports, and the minutes of the November 4, 2019 regular meeting.

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**Budget Transfer #4
FY 2019-2020
Senior Center**

Transfer From:	Account Number	Amount
Maintenance Building/Grounds	10-504-500015	500
Total		\$ 500

Transfer To:	Account Number	Amount
Pest Control	10-504-500057	500
Total		\$ 500

Purpose: Additional pest control services needed.

Authorization: Vance County Board of Commissioners
December 9, 2019

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TAX OFFICE REFUND AND RELEASE REPORT FOR OCTOBER 2019

TAXPAYER NAME	TAX YR	REAL	PERSONAL	SOLID WASTE FEE	REASON
TERRY RICHARD LOYD	2017	0	3.08	0	PERS PROP BILLED
BRIGGS RONALD FALCONIA	2019	0	7.81	0	CORRECT VALUE

CAUSBY RICKIE A. & JANE	2019	0	44.45	0	CORRECT VALUE
PEGRAM PEGGY F	2019	0	0	112	REMOVE SOLID WAS
ROBERSON KENNETH W	2019	0	5.93	0	PERS PROP BILLED
STONE JOEL DAVID	2019	0	62.11	0	CORRECT VALUE
TWYMAN STEVEN B	2019	0	341.67	0	PERS PROP BILLED
TWYMAN STEVEN B	2019	0	2.94	0	PERS PROP BILLED
TWYMAN STEVEN B	2019	0	2.94	0	PERS PROP BILLED
VALENCIA ADRIANA MARIE	2019	0	31.77	0	CORRECT VALUE
TOTAL		0	502.70		
GRAND TOTAL	502.70				

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 MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-
 Offs, Cooperative Extension, EMS, Human Resources, Information Technology, Planning and
 Development, Parks and Recreation, Tax Collections, and Veterans Service.

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Miscellaneous

Appointments. The following appointments were presented to the Board for consideration:

Tourism Development Authority – three year term
 Reappoint Deborah Brown, Eddie Ellington and Hitesh Patel

Community Advisory Committee – three year term
 Reappoint Ricky Holden

Firemen’s Relief Fund Boards – two year term
 Re-appointment of Commissioner Appointees. Bearpond VFD – Frank Brown and Debra
 Kempson; Cokesbury VFD - Alton Patrick and Chris Wright; Golden Belt - Thomas Hester and
 Carolyn Faines; Hicksboro VFD – Wallace Edwards and Robert Griffin; Kittrell VFD - Gene
 Pulley and Jason Green; Townsville VFD - Travis Richardson and Joe Norwood; and Watkins
 VFD - Josephine Clayton and Brian Clayton.

Granville Vance Health District Board
 Appoint Charles Burnham to fill vacant dentist position.

Motion was made by Commissioner Dan Brummitt, seconded by Commissioner Thomas
 S. Hester, Jr., vote unanimous, to approve the appointments and reappointments as presented.

As there was no further business, at 7:35 p.m., motion was made by Commissioner Thomas
 S. Hester, Jr., seconded by Commissioner Archie B. Taylor, Jr., vote unanimous, that the meeting
 be adjourned.

Approved and signed January 6, 2020.

Gordon Wilder (signed)
 Gordon Wilder, Chairman